KARNATAKA

SIDDA IN A CORNER

By Ajay Sukumaran



EYE OF THE STORM
CM Siddaramaiah with deputy CM D.K. Shivakumar at a presser after the court order, Sept. 24

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Nearly three months after Karnataka chief minister Siddaramaiah was besieged with allegations of his wife benefitting from irregularities at the Mysore Urban Development Authority (MUDA), things have come to a head. On September 24, the Karnataka High Court dismissed the CM's petition challenging the governor's nod for an investigation into the MUDA allotment of housing plots worth Rs 55.8 crore. As expected, the Opposition has stepped up pressure on the CM to quit.

However, Siddaramaiah has decided to stay put and fight it out legally, with an appeal before a higher bench. "All the ministers, MLAs and the party high command are with me," the CM said at a briefing hours after the court judgment. "I'm not afraid of the conspiracies of the BJP and the JD(S) because the people of Karnataka are with me," he added, accusing the Opposition of "misusing the Raj Bhavan" to try and dislodge him.

The allegations against Siddaramaiah pertain to MUDA alloting 14 housing plots to his wife B.M. Parvathi in 2022 as compensation for encroaching on 3.16 acres of land she had owned on the outskirts of Mysuru. Though this happened when a BJP government was in power in Karnataka, three separate complaints to governor Thaawarchand Gehlot alleged that there were irregularities during a three-decade timeline since 1992 when the 3.16 acres, originally farmland, had been notified for takeover by MUDA, then denotified and dropped from acquisition, and subsequently purchased by Parvathi's brother, who gifted it to her in 2010. The governor's office had cited Section 17A of the Prevention of Corruption Act, 1988, and Section 218 of the Bharatiya Nagarika Suraksha Sanhita (BNSS), while sanctioning the investigation and prosecution of the CM.

THE LANDMINE

- **Karnataka HC dismisses Siddaramaiah's petition, allows probe into MUDA allotments of housing plots to his wife in Mysuru**
- **Governor had given the nod for the investigation. Opposition up in arms, wants Sidda to step down**

The court's ruling has come as a setback to Siddaramaiah who had argued that the governor should not have ignored the advice of the Council of Ministers which was binding on him, and that an approval under Section 17A could only be initiated by a police officer as per standard operating procedure. "The governor, in normal circumstance, has to act on the aid and advice of the Council of Ministers as obtaining under Article 163 of the Constitution of India, but can take independent decision in exceptional circumstances. The present case is one such exception," said the order by Justice M. Nagaprasanna. "No fault can be found in the action of the governor exercising independent discretion to pass the impugned order." Further, the gubernatorial order nowhere suffered